

ELIZABETH II



1967 CHAPTER xxx

An Act to empower the British Railways Board to construct works and to acquire lands; to extend the time for the completion of certain works; to confer further powers on the Board, the Fishguard and Rosslare Railways and Harbours Company and British Rail Hovercraft Limited; and for other purposes. [27th July 1967]

WHEREAS by the Transport Act, 1962, the British Railways Board (hereinafter referred to as "the Board") were established:

And whereas it is the duty of the Board under the Transport Act, 1962, (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the period now limited for the completion of certain works should be extended as provided by this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board, the Fishguard and Rosslare Railways and Harbours Company and British Rail Hovercraft Limited as therein provided and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the Greater London Council and the clerks of the county councils of the several counties within which the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

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| Short title. | 1. This Act may be cited as the British Railways Act 1967. |
| Interpretation. | 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and— |
| 1845 c. 20. | “ the Act of 1845 ” means the Railways Clauses Consolidation Act, 1845; |
| 1863 c. 92. | “ the Act of 1863 ” means the Railways Clauses Act, 1863; |
| 1963 c. xviii. | “ the Act of 1963 ” means the British Railways Act, 1963; |
| 1965 c. xxi. | “ the Act of 1965 ” means the British Railways Act, 1965; |
| | “ the Board ” means the British Railways Board; |
| | “ the council ” means the Greater London Council; |
| | “ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, |

scheme or other instrument having effect by virtue of an enactment;

“the limits of deviation” means the limits of deviation shown on the deposited plans;

“the Minister” means the Minister of Transport;

“the tribunal” means the Lands Tribunal;

“the works” means the works authorised by Part II (Works) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment, as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works, powers or lands shall be construed as if the words “or thereabouts” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

3. The following Acts and Parts of Acts, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

The Act of 1845, except sections 7, 8, 9, 19, 20, 22 and 23 thereof, and Part I (relating to construction of a railway) and Part II (relating to extension of time) of the Act of 1863:

Provided that—

(i) for the purposes of the provisions of the Act of 1845 and the Act of 1863 as incorporated with this Act—

(a) the expression “the company” where used in the said incorporated provisions means the Board;

(b) Work No. 10 shall be deemed to be a railway authorised by the special Act;

(ii) the provisions of sections 18 and 21 of the Act of 1845 shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(a) by the provisions of Part II of the Public Utilities Street Works Act, 1950; or

1950 c. 39.

PART I
—cont.

(b) by the provisions of section 33 (For protection of gas, water and electricity undertakers) of the Act of 1963 as incorporated with this Act.

Application
of Part I of
Compulsory
Purchase
Act, 1965.
1965 c. 56.
1946 c. 49.

4.—(1) Part I of the Compulsory Purchase Act, 1965 (except section 4, section 24 (5), section 27 and paragraph 3 (3) of Schedule 3 thereof), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act, 1946, applies and as if this Act were a compulsory purchase order under the said Act of 1946.

(2) In section 11 (1) of the Compulsory Purchase Act, 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice) as so applied, for the words "fourteen days" there shall be substituted the words "three months".

1845 c. 18.

(3) The Lands Clauses Consolidation Act, 1845, shall not apply to the acquisition of land under this Act.

PART II

WORKS.

Power to
make works.

5.—(1) Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the county of Hertford—

(Railway at
Welwyn)

Work No. 1 A railway (699 yards in length) wholly in the urban district of Welwyn Garden City commencing by a junction with the railway between Hatfield and Welwyn North at a point 8 yards north-east of the bridge carrying Broadwater Road over the said railway and terminating at a point 693 yards north-east of the said bridge.

In the county of Lancaster—

(Railway at
Golborne)

Work No. 2 A railway (768 yards in length) wholly in the urban district of Golborne commencing by a junction with the railway between Wigan and Warrington at a point 556 yards north-west of the bridge carrying the railway between St. Helens and Lowton St. Mary's over the said railway and terminating at a point 57 yards east of the bridge carrying Ashton Road over the railway between St. Helens and Lowton St. Mary's.

In Greater London—

PART II
—cont.

Work No. 3 A railway (1,000 yards in length) wholly in the London borough of Wandsworth commencing by a junction with the railway between Putney and Clapham Junction at a point 660 yards south-west of the bridge carrying the said railway over Plough Road and terminating at a point 340 yards north-east of the said bridge. (Railway at Clapham Junction)

In Greater London and the county of Surrey—

Work No. 4 A railway (2 miles 1,271 yards in length) commencing in the London borough of Hounslow by a junction with the railway between Feltham and Ashford at a point 33 yards south-west of the bridge carrying Bedfont Road over the said railway passing through the urban district of Staines and terminating in the London borough of Hillingdon at a point 352 yards north-west of the northern corner of No. 1 Building at Heathrow Airport, London. (Railway to Heathrow Airport, London)

In Greater London—

Work No. 5 A reconstruction and lengthening in the London borough of Hounslow of the bridge carrying Kew Bridge Road over the railway between Brentford and Chiswick: (Bridge reconstruction at Kew Bridge)

Work No. 6 A reconstruction and lengthening in the London borough of Hounslow of the bridge carrying Clayponds Lane over the railway between Brentford Central and Kew Bridge: (Bridge reconstruction at Clayponds Lane, Brentford)

Work No. 7 A reconstruction and lengthening in the London borough of Hounslow of the bridge carrying Windmill Road over the railway between Brentford Central and Kew Bridge: (Bridge reconstruction at Windmill Road, Brentford)

Work No. 8 A reconstruction and lengthening in the London borough of Hounslow of the bridge carrying Boston Manor Road over the railway between Syon Lane and Kew Bridge: (Bridge reconstruction at Boston Manor Road)

Work No. 9 A reconstruction and lengthening in the London borough of Richmond upon Thames of the bridge carrying Hanworth Road over the railway between Feltham and Hounslow: (Bridge reconstruction at Hanworth Road)

Work No. 10 A widening in the London borough of Greenwich on the south side thereof of the bridge carrying the railway between Westcombe Park and Charlton over Westcombe Hill. (Bridge widening at Westcombe Park)

PART II
—cont.

(2) Subject to the provisions of this Act and within the limits of deviation, the Board may, in carrying out Works Nos. 6, 7, 8 and 9, make junctions with and may alter the line or level of any street or way interfered with by or contiguous to the said works and may alter and interfere with any steps, walls, gateways, railings, passages, pipes and pavements and may execute any works for the protection of any adjoining land or building:

1878 c. 76.

Provided that notwithstanding anything in this subsection contained the Board shall not alter (as defined in the Telegraph Act, 1878) any telegraphic line (as so defined) belonging to or used by the Postmaster General except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the said Act of 1878.

As to
dimension of
bridge, etc.

6.—(1) Notwithstanding anything in the Act of 1845, as incorporated with this Act, the Board may in the reconstruction of the bridge over the railway comprised in Work No. 6 construct the same with the same width between parapets as the width between parapets of the existing bridge carrying Clayponds Lane over the railway.

(2) The Board shall erect a good and sufficient fence on each side of each of the new or reconstructed bridges comprised in Works Nos. 5, 6, 7, 8 and 9.

As to level
crossings at
Colsterworth.

7.—(1) In this section—

“the company” means the United Steel Companies Limited;

“the diverted road” means any public road constructed by the company in substitution for any part of the road from Gunby to Skillington so as to cross the Highdyke branch;

“the existing crossing” means the level crossing in the parish of Colsterworth in the rural district of West Kesteven in the county of Lincoln (Parts of Kesteven) whereby the Highdyke branch crosses the road from Gunby to Skillington;

“the Highdyke branch” means the branch railway between Great Ponton and Sproxton;

“the new road” means any public road constructed by the company in substitution for any part of Crabtree Road in the said parish of Colsterworth so as to cross the Stainby branch;

“the Stainby branch” means the branch railway between the Highdyke branch and Stainby.

(2) The Board may enter into agreements with the company for the construction of level crossings for carrying the Highdyke branch across the diverted road on the level and for carrying the Stainby branch across the new road on the level and may carry into effect such agreements.

(3) The Highdyke branch and the Stainby branch may be carried by a single line of railway across and on the level of the diverted road and the new road respectively and the provisions of the Act of 1845 and of Part I (relating to the construction of a railway) of the Act of 1863 with reference to the crossing of roads on the level shall apply to any level crossing constructed under the powers of this section:

Provided that the Board shall not be required to maintain a lodge at either of the level crossings and the gates thereat shall be kept constantly closed across the railway instead of across the road except when engines or carriages passing along the railway shall have occasion to cross the road.

(4) Upon the completion and opening for public use of the level crossing for carrying the railway on the level across the diverted road the Board may stop up and discontinue the existing crossing and thereupon all rights of way over and along the existing crossing shall be extinguished.

(5) The Board may with the consent in writing of the Minister (which consent the Minister may amend or revoke), and subject to such requirements as the Minister may from time to time lay down, provide at or near any level crossing constructed under the powers of this section and maintain and operate so long as the consent continues in force such barriers, lights, traffic signs and automatic or other devices and appliances as may be specified by the Minister.

(6) So long as any such consent as aforesaid continues in force the provisions (in so far as they are inconsistent with any such consent) of the Highway (Railway Crossings) Act, 1839, of 1839 c. 45. section 47 of the Act of 1845 and of section 6 of the Act of 1863 shall cease to apply to the said level crossing.

(7) Any traffic sign provided in pursuance of any such consent as aforesaid shall be deemed to be a traffic sign lawfully placed on or near a road in accordance with the provisions of the Road Traffic Act, 1960:

1960 c. 16.

Provided that nothing in this subsection shall impose on a highway authority any liability in respect of a traffic sign provided in pursuance of any such consent.

(8) In this section "traffic sign" has the meaning assigned to it by section 51 of the Road Traffic Act, 1960.

(9) The Board may enter into agreements with the company with reference to the defraying or making of contributions towards the cost of constructing, maintaining and renewing any level crossing constructed under the powers of this section and with regard to any other matters relating thereto and may carry into effect such agreements.

PART II
—*cont.*

As to
footbridge at
Gloucester
Road,
Avonmouth.

1890 c. clix.

Further
works and
powers.

8. Notwithstanding anything in the proviso to section 6 (Power to cross certain roads on the level) of the Great Western Railway Act, 1890, the Board shall not be required to maintain a footbridge at the level crossing referred to therein, and all public rights of way over the said footbridge are hereby extinguished.

9.—(1) Subject to the provisions of this Act (and in so far as the same are shown on the deposited plans and sections in the lines or situations and according to the levels as shown), the Board may make and maintain the works described in this section with all necessary works and conveniences connected therewith and may exercise the powers hereinafter mentioned:—

(a) In Greater London—

(i) In the London borough of Hounslow—

(A) they may stop up and discontinue the footpath leading from Church Walk to Church Walk, Upper Butts, and crossing the railway between Syon Lane and Brentford Central by means of a footbridge between the points marked “A” and “B” on the deposited plans, and may substitute therefor a new footpath and footbridge between the points marked “A”, “C”, “D” and “E” in the position shown on the deposited plans;

(B) they may stop up and discontinue so much of Church Walk, Upper Butts, as is situate within the line marked “Portion of public road to be stopped up and appropriated” on the deposited plans:

(ii) In the London borough of Lewisham—

they may stop up and discontinue so much of the road known as Aspinall Road which crosses the railway between Nunhead and Lewisham by means of a bridge as lies within the boundaries of their property.

(b) In the county of Derby—

In the parish of Spondon in the rural district of South East Derbyshire—

they may stop up and discontinue so much of Megalaughton Lane which is crossed by the railway between Spondon and Derby at the level crossing known as Megalaughton crossing as lies within the boundaries of their property.

(c) In the county of Stafford—

In the urban district of Cannock—

they may stop up and discontinue so much of the road known as Green Lane as lies between a point

118 yards west of the centre of the bridge carrying the said road over the railway between Walsall and Cannock and a point 18 yards east of the centre of the said bridge.

PART II
—cont.

(d) In the county of West Sussex—

In the urban district of Crawley—

they may stop up and discontinue so much of the road known as Ifield Drive which is crossed by the railway at Ifield Halt as lies within the boundaries of their property.

(2) No consent shall be required under section 11 (Stopping up roads and footpaths without providing substitute) of the Act of 1963 as incorporated with this Act in respect of the stopping up of—

(a) the portion of Church Walk, Upper Butts, in the London borough of Hounslow; and

(b) the portion of Green Lane in the urban district of Cannock;

authorised by this section.

(3) The stopping up under this section of the level crossing known as Megalaughton crossing in the parish of Spondon shall not affect the right of persons on foot to use the same and the Board shall provide and maintain for the convenience of such persons wicket-gates on both sides of the railway at the said level crossing.

(4) The stopping up under this section of the level crossing known as Ifield Halt crossing in the urban district of Crawley shall not take place until a new road bridge and approaches between Ifield Drive and Gossops Green Lane and a footbridge at the said crossing have been constructed and opened for public use.

10.—(1) As from the passing of this Act, all rights of way over the level crossing referred to in Part I of Schedule 1 to this Act shall be extinguished. As to certain level crossings.

(2) As from the passing of this Act, all rights of way over the level crossings referred to in Part II of the said schedule, other than a right of way for all persons to use those level crossings on foot, shall be extinguished, and the Board shall provide and maintain on both sides of the railway at each of the said level crossings wicket-gates or stiles for the convenience of persons on foot.

(3) The provisions of the Highway (Railway Crossings) Act, 1839 c. 45. 1839, of section 9 of the Railway Regulation Act, 1842, of 1842 c. 55. section 47 of the Act of 1845, and of sections 5, 6 and 7 of the

PART II
—cont.

Act of 1863, and any other provisions to the same or similar effect incorporated with or contained in any enactment relating to any of the level crossings referred to in the said schedule shall cease to apply to those level crossings.

(4) As from the passing of this Act, each of the level crossings referred to in the said schedule (including the gates thereof, other than the gates provided in pursuance of subsection (2) of this section) shall be deemed to be a work provided by the Board at the passing of this Act pursuant to section 68 of the Act of 1845 for the accommodation of the owners and occupiers of the lands adjoining the railway, and, for the purposes of this subsection, such owners and occupiers shall be deemed to include the owners and occupiers of any lands the use of which would have been interrupted if such level crossing had been closed at the passing of this Act.

(5) If any part of the road crossed by the railway at any of the level crossings referred to in the said schedule shall in consequence of the provisions of this section cease to be a road over which the public have a right of way for the passage of vehicles, the owners and occupiers of the lands abutting on such part shall be deemed to have such rights of passage thereover as shall be necessary to enable them to pass and repass to and from the said lands from and to such level crossing.

(6) Any person who suffers loss by the extinguishment under this section of such private rights of way (if any) as may exist over the level crossings referred to in the said schedule shall be entitled to be paid by the Board compensation to be determined, in case of dispute, by the tribunal.

Underpinning
of houses near
works.

11. The Board at their own costs and charges may, subject as hereinafter provided, underpin or otherwise strengthen any house or building within 100 feet of any of the works and the following provisions shall have effect:—

- (1) At least fourteen days' notice shall (except in case of emergency) be given to the owners, lessees and occupiers of the house or building intended to be so underpinned or otherwise strengthened;
- (2) Each such notice shall be served in manner prescribed by section 30 of the Compulsory Purchase Act, 1965, as applied by this Act;
- (3) If any owner, lessee or occupier of any such house or building shall, within seven days after the giving of such notice, give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening, the question of the necessity shall be settled by arbitration;

- (4) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Board may, from time to time after the completion of such underpinning or strengthening, and during the execution of the work in connection with which such underpinning or strengthening was done, or within five years after the opening for traffic of that work, enter upon and survey such house or building and do such further underpinning or strengthening thereof as they may deem necessary or expedient or, in case of dispute between the Board and the owner, lessee or occupier of the house or building, as shall be settled by arbitration;
- (5) The Board shall be liable to compensate the owners, lessees and occupiers of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section, provided that the claim for compensation in respect of such loss or damage is made within three months from the date upon which any such owner or occupier either first discovers the loss or damage or by which he ought reasonably to have discovered it, whichever is the earlier;
- (6) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the Board from the liability to compensate under section 10 (2) of the Compulsory Purchase Act, 1965, as applied by this Act 1965 c. 56. or under any other enactment;
- (7) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Land Compensation Act, 1961. 1961 c. 33.

12.—(1) The Board during and for the purpose of the execution of the works may temporarily stop up and divert and interfere with any road or footpath and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any land, house or building abutting on the road or footpath from passing along and using the same. Temporary stoppage of roads and footpaths.

(2) The Board shall provide reasonable access for persons on foot bona fide going to or from any such land, house or building.

(3) The Board shall not exercise the powers of this section without the consent of the highway authority, but such consent shall not be unreasonably withheld and any question as to whether such consent has been unreasonably withheld shall be determined by the Minister.

PART II
—cont.

(4) The Board shall not exercise the powers of this section with respect to any road upon which public service vehicles are authorised by a road service licence to operate unless the Board give not less than forty-eight hours' previous notice to the traffic commissioners and to the operators of the public service vehicles so licensed.

(5) The exercise by the Board of the powers of this section in relation to any road or footpath shall not prejudice or affect the right of the Postmaster General—

(a) to maintain, inspect, repair, renew or remove any telegraphic line belonging to or used by him which may for the time being be under, in, upon, over, along or across that road or footpath; or

(b) for the purpose of such maintenance, inspection, repair, renewal or removal to enter upon or break open that road or footpath.

1878 c. 76. (6) In this section the expression “telegraphic line” has the same meaning as in the Telegraph Act, 1878.

Incorporation
of provisions
of Act of
1963 relating
to works.

13. The following provisions of the Act of 1963 are incorporated with, and form part of this Part of, this Act:—

Section 5 (Power to deviate);

Section 7 (Repair of roads where level not permanently altered);

Section 11 (Stopping up roads and footpaths without providing substitute);

Section 12 (Stopping up roads and footpaths in case of diversion or substitution);

Section 13 (Provision as to repair of roads and footpaths);

Section 14 (Power to make agreements with road authorities); and

Section 17 (Use of sewers, etc., for removing water):

Provided that—

1963 c. 38. (i) the expression “river board” where used in the said section 17 of the Act of 1963, as so incorporated, shall mean a river authority established by an order under Part II of the Water Resources Act, 1963, and shall include the Conservators of the River Thames and the Lee Conservancy Catchment Board and the definition of “river board” in subsection (5) of the said section 17 shall be construed accordingly;

1948 c. 26. (ii) for the purposes of the said section 17 of the Act of 1963 as so incorporated the expression “local authority” in section 144 of the Local Government Act, 1948, shall be deemed to include the council.

PART III

LANDS

14.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking. Power to acquire lands.

(2) Without prejudice to the generality of the powers conferred upon the Board by subsection (1) of this section, the Board may, subject to the provisions of this Act, enter upon, take and use for the purposes specified in column (3) of Schedule 2 to this Act all or any of the lands referred to in columns (1) and (2) of the said schedule.

(3) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes of the works without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

15.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Compulsory Purchase Act, 1965, as applied by this Act, the following provisions of this section shall apply to the land subject to the notice instead of section 8 (1) of that Act. Acquisition of part only of certain properties.

1965 c. 56.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto, then, if the person on whom the notice is served, within twenty-one days after the day on which the notice is served on him, serves on the Board a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereinafter in this section referred to as “the land subject to the counter-notice”), the question whether he shall be required to sell the part shall, unless the Board agree to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within twenty-one days after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, in the case of part of land consisting of a house, together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

PART III
—cont.

(4) If on such a reference to the tribunal the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

(5) If on such a reference to the tribunal the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the Board are authorised to acquire compulsorily under this Act.

(6) If the Board agree to take the land subject to the counter-notice, or if the tribunal determine that—

(a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and

(b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice, whether or not the whole of that land is land which the Board are authorised to acquire compulsorily under this Act.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) of this section, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the Board may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is required under this section to sell part only of a house, building or factory, or of land consisting of a house, together with any park or garden belonging thereto, the Board shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

16.—(1) Any person empowered by the Compulsory Purchase Act, 1965, as applied by this Act, to sell and convey or release lands may, if he thinks fit, subject to the provisions of the said Act of 1965, grant to the Board any easement or right required for the purposes of this Act in or over the lands not being an easement or right of water in which some person other than the grantor has an interest.

PART III
—cont.

Grant of easements by persons under disability.
1965 c. 56.

(2) The provisions of the said Act of 1965 with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

17.—(1) Notwithstanding anything in this Act, the Board may acquire such easements or rights as they may require for the purpose of constructing, maintaining, renewing and using the works in, under or over—

Power to acquire easements only in certain cases.

(a) any railway, tramway, tramroad, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer; or

(b) any of the lands numbered on the deposited plans—

11, 12, 13, 15 and 17 in the London borough of Hounslow;

1 in the urban district of Staines; and

1 in the London borough of Hillingdon;

without being obliged to acquire any greater interest in, under or over the same respectively, and may give notice to treat in respect of such easements or rights describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of Part I of the Compulsory Purchase Act, 1965, as applied by this Act, shall have effect in relation to the acquisition of such easements or rights as if they were lands within the meaning of those provisions.

(2) (a) If, in any case where the Board acquire an easement or right in or under any of the said lands, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or other construction for the purposes of the works and the provisions of the Compulsory Purchase Act, 1965, as applied by this Act, shall extend and apply in relation to the purchase thereof as if such cellar, vault, arch or other construction were lands within the meaning of those provisions.

(b) Section 15 (Acquisition of part only of certain properties) of this Act shall apply in respect of the acquisition by the Board under this subsection of any cellar, vault, arch or other construction as if the same were a part of land to which that section applies.

PART III
—*cont.*

Disregard of recent improvements and interests.
1965 c. 56.

18. In determining any question of disputed compensation under the Compulsory Purchase Act, 1965, as applied by this Act, the tribunal shall not take into account—

(a) any works executed, improvement or alteration made, or building erected after 5th December, 1966, or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was executed, made, erected, done or created with a view to obtaining or increasing the compensation or purchase money.

Period for compulsory purchase of lands or easements.

Incorporation of provisions of Act of 1963 relating to lands.

19. The powers of the Board for the compulsory acquisition of the lands and easements which they are authorised to acquire by this Part of this Act shall cease on 31st December, 1970.

20. The following provisions of the Act of 1963 are incorporated with, and form part of this Part of, this Act:—

Section 19 (Correction of errors in deposited plans and book of reference);

Section 24 (Extinction of private rights of way); and

Section 28 (As to cellars under streets not referenced).

PART IV

HARBOURS

Interpretation of Part IV.

1847 c. 27.

21. In this Part of this Act unless otherwise expressly provided or the contrary intention appears—

“the Act of 1847” means the Harbours Docks and Piers Clauses Act, 1847, and words and expressions to which meanings are assigned by that Act have the same respective meanings;

“charges” includes charges, rates, tolls and dues of every description payable to the Board for services or facilities in or connected with any of the Board’s harbours;

“the harbour” means any harbour, dock or pier from time to time owned, leased, worked or managed by the Board and includes all docks, quays, wharves, jetties, piers, lands, buildings, machinery, apparatus, works and conveniences forming part thereof or held or used by the Board in connection therewith; and the expression “the Board’s harbours” shall be construed accordingly;

“the harbour limits” means the limits within which the powers of the harbour master for the regulation of the harbour are authorised to be exercised by the Railway Harbour Acts;

PART IV
—cont.

“the harbour master” means the harbour master, dock master or pier master at any of the Board’s harbours and includes his authorised deputies and assistants and any person authorised by the Board to act in that capacity;

“harbour works and premises” means any docks, quays, wharves, jetties, piers, lands, buildings, structures, equipment, works and conveniences forming part of any of the Board’s harbours;

“hover vehicle” means a vehicle, however propelled, designed to be supported on a cushion of air;

“hydrofoil vessel” means a vessel, however propelled, designed to be supported on foils;

“owner” when used with reference to any vessel includes the owner, agent, charterer, master or other person in charge of the vessel and where used with reference to goods includes the owner, agent, consignor, consignee, shipper or other person in charge of the goods and their respective agents in relation thereto;

“the Railway Harbour Acts” means the local enactments relating to the Board’s harbours;

“vessel” means every description of vessel, however propelled or moved, including a hover vehicle, a hydrofoil vessel and anything constructed or used to carry persons or goods by water;

and references to the Board and the Board’s harbours shall be construed as including references to the Fishguard and Rosslare Railways and Harbours Company and to that company’s harbour at Fishguard respectively.

22. The word “vessel” where used in the Railway Harbour Acts or in the Act of 1847 as incorporated therewith shall have the same meaning as in this Part of this Act.

As to interpretation of Railway Harbour Acts.

23. Section 52 of the Act of 1847 as incorporated with the Railway Harbour Acts shall extend to empower the harbour master to give directions prohibiting the mooring of vessels in any particular part or parts of the harbour.

Harbour master may give directions as to mooring.

24. Section 52 of the Act of 1847 as incorporated with the Railway Harbour Acts shall not be construed as requiring the harbour master in emergency to give particular directions in the case of every vessel in respect of which it is desired to exercise any of the powers of that section, but in pursuance of that section for all or any of the purposes thereof, the harbour master shall be entitled in emergency to give general directions applicable to all vessels or to any particular class or classes of vessels.

Harbour master may give general directions in emergency.

PART IV
—cont.

Extension of
powers of
harbour
master.

25. Section 52 of the Act of 1847 as incorporated with the Railway Harbour Acts shall, notwithstanding anything in section 33 of the Act of 1847 as so incorporated, extend to empower the harbour master to impose terms and conditions upon which a hover vehicle or hydrofoil vessel may enter the harbour or any part thereof.

Orders of
harbour
master need
not be in
writing.

26. Section 53 of the Act of 1847 as incorporated with the Railway Harbour Acts shall not be construed to require the harbour master to serve a notice in writing of his directions upon the master of a vessel and such directions may be given orally or otherwise communicated to the master, but a notice which is not in writing shall not be deemed to be sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

Power to
lease, etc.,
warehouses,
etc.

27. Notwithstanding anything in any enactment, the Board may from time to time lease or grant the use or occupation of or any easement, servitude or other right or interest in, on, under or over any harbour works and premises for such period or periods, at such rents or other considerations and on such terms and conditions as shall be agreed between the Board and the lessee or grantee thereof, as the case may be.

Appropriation
of berths, etc.

28.—(1) Notwithstanding anything in any enactment, the Board may from time to time set apart and appropriate any harbour works and premises for the exclusive, partial or preferential use and accommodation of any particular trade, person, vessel or goods or any class of trades, persons, vessels or goods subject to the payment of such rents and subject to such terms, conditions and regulations as the Board may think fit.

(2) No person or vessel shall make use of any harbour works and premises so set apart or appropriated without the consent of the harbour master and the harbour master may order any person or vessel making use thereof without such consent to be removed and the provisions of section 58 of the Act of 1847 as incorporated with the Railway Harbour Acts shall extend and apply mutatis mutandis to and in relation to any such vessel.

Recovery of
charges.

29.—(1) In addition to any other remedy given by the Act of 1847 as incorporated with the Railway Harbour Acts and whether the demand required by section 44 of that Act has been made or not, the Board may recover any charges payable to them as a debt in any court of competent jurisdiction.

(2) Charges payable to the Board shall be payable by the owner of any vessel or goods in relation to which the charges are payable.

(3) Where under this section charges payable to the Board may be recovered by them from two or more persons as owner, the said persons shall be jointly and severally liable.

PART IV
—cont.

30. If the owner of any vessel or goods or any other person at any time eludes or evades or attempts to elude or evade payment of, or refuses or neglects to pay, any charges payable by such owner or person to the Board at the time when the same become due and payable, he shall—

Penalty for evading payment of charges.

(a) be liable to pay to the Board a sum equal to three times the amount of such charges, which sum shall be a debt due to the Board and shall be recoverable by the Board in any court of competent jurisdiction; and

(b) be liable on summary conviction to a fine not exceeding fifty pounds.

31. The harbour master may prevent the removal or sailing from within the harbour limits of any vessel until evidence has been produced to him of the payment to the collector of rates of any charges payable in respect of the vessel or of the goods imported or exported therein.

Harbour master may prevent sailing of vessels.

32.—(1) Except in case of emergency, the owner or master of a vessel carrying any dangerous goods shall, not less than twenty-four hours before that vessel enters the harbour limits, give notice to the harbour master of the nature and quantity of dangerous goods carried in the vessel and, if such notice is not given, the owner or master of the vessel shall be guilty of an offence and shall be liable to a fine not exceeding one hundred pounds.

Notice before entry of dangerous goods.

(2) Where the owner or master of a vessel is charged with an offence under subsection (1) of this section it shall be a defence to prove that he did not know and could not with reasonable diligence have ascertained the nature of the goods in respect of which the proceedings are taken.

33. The Board shall not be responsible for the safety of any goods deposited on any part of the harbour not specifically set apart by them for the purpose of warehousing.

Liability for safety of goods.

PART V

PROTECTIVE PROVISIONS

34. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation of provisions of Acts of 1963 and 1965.

The Act of 1963—

Section 30 (As to works within Metropolitan Police District);

PART V
—cont.

Section 33 (For protection of gas, water and electricity undertakers).

The Act of 1965—

Section 34 (For protection of Postmaster General):

Provided that the provisions of the said section 34 of the Act of 1965, as so incorporated, shall have effect as if for the reference therein to section 6 (Stopping up of portions of roads and foot-paths, etc.) of that Act there was substituted a reference to section 9 (Further works and powers) of this Act.

Crown rights.

35.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing in this Act authorises the Board to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to Her Majesty in right of Her Crown and under the management (pursuant to any statute or otherwise) of the Minister of Public Building and Works without the consent in writing of that Minister on behalf of Her Majesty first had and obtained for that purpose; or
- (c) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Board to carry out any works by reason only that such works involve or are likely to involve an alteration in any telegraphic line of the Postmaster General in relation to which paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878, apply.

1878 c. 76.

For protection
of air
navigation
services.

36.—(1) Without prejudice to the generality of section 35 (Crown rights) of this Act the Board shall before executing any works in, on or under any lands within the boundaries of Heathrow Airport or outside but within 2,000 yards of the said boundaries, consult with the Board of Trade.

(2) If it appears to the Board of Trade that any of the intended works, or the execution of such works, or any apparatus to be used in the execution of such works, will or may obstruct or interfere with the operation of any navigation services, the Board of Trade may require the Board to submit to the Board of Trade a plan and section of such works and a description of the works and of the manner in which the Board intend to execute them.

(3) In any such case such works shall be executed only in accordance with such directions as the Board of Trade may give for the protection of the navigation services and for securing access thereto and in accordance with any plan, section and description submitted as aforesaid, and the Board of Trade shall be entitled to watch and inspect the execution of such works.

(4) Anything to be done by, to or before the Board of Trade by virtue of this section may be done by, to or before the President of the Board of Trade, any Minister of State with duties concerning the affairs of the Board of Trade, any Secretary, Under-Secretary or Assistant Secretary of the Board of Trade, or any person authorised in that behalf by the President of the Board of Trade.

(5) In this section “ navigation services ” has the same meaning 1965 c. 16. as in the Airports Authority Act, 1965.

37. For the protection of the Minister of Public Building and Works (in this section referred to as “ the Minister ”) the following provisions shall, unless otherwise agreed in writing between the Minister and the Board, apply and have effect:—

As to
Longford
River.

(1) In constructing Work No. 4 the Board shall provide an aqueduct (in this section referred to as “ the aqueduct ”) suitable for carrying Longford River over the said work in a position and of dimensions and at levels corresponding to those of the bed of the said river and the abutments and approaches of the aqueduct shall extend for a minimum distance of 20 feet in either direction on undisturbed ground beyond the extremities of the said work:

(2) The aqueduct shall be constructed according to designs and specifications previously approved by the Minister and shall as far as possible maintain the profile of the existing bed of Longford River:

(3) Work No. 4 shall be constructed in conformity with the following requirements:—

(a) Notwithstanding anything in this Act the Board shall not at the point where Work No. 4 crosses Longford River deviate upwards from the levels shown on the deposited sections;

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—cont.

(b) Work No. 4 shall be so constructed and maintained as to retain a minimum depth of cover of 5 feet between the level of the invert of the aqueduct and the level of the soffit of the tunnel of the said work beneath the aqueduct;

(c) Work No. 4 shall be so constructed and maintained as to provide a minimum height of 20 feet between the level of the invert of the aqueduct and the level of the rail of the said work beneath the aqueduct:

- (4) The Board shall not in the construction or maintenance of Work No. 4 do or permit to be done anything which may impede or interfere with the flow of water in Longford River provided that nothing in this paragraph shall preclude the Board from diverting water flowing in the said river into another channel during the construction of the said work or for the purpose of maintaining the aqueduct but no such diversion shall be continued longer than is necessary for the said purposes and the Board shall as soon as reasonably possible restore the said river to the state in which it is required by this section to be maintained:
- (5) Except as provided in this section nothing in this Act shall authorise the Board to make any alteration in the levels of Longford River nor to reduce the dimensions of the channel of the said river:
- (6) The Board shall maintain the aqueduct in a completely watertight condition and in conformity with the line shown on the deposited plans and according to the levels shown on the deposited sections:
- (7) If Work No. 4 ceases to be used for the operation of the railway the Board shall remove all structures forming part of the said work so far as they affect Longford River and shall restore the said river to the condition in which it was immediately prior to the construction of the said work as far as it is reasonably possible to do so and to the satisfaction of the Minister:
- (8) The Minister shall at all reasonable times have access to such parts of Work No. 4 (including the tunnel) as he may reasonably require for the purpose of inspecting the construction and maintenance of the aqueduct:
- (9) The Board shall not discharge or permit to be discharged from any of their works directly or indirectly into Longford River any water or any other matter whether

liquid or solid and (without prejudice to the generality of the last foregoing provision) shall not cause or permit any pollution of the said river:

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— cont.

- (10) Nothing in this Act shall diminish or restrict any powers of the Minister to maintain or preserve Longford River or the flow of water therein.

38.—(1) For the protection of the council the following provisions shall, unless otherwise agreed in writing between the Board and the council, apply and have effect.

For protection
of Greater
London
Council.

(2) The Board shall not under the powers of this Act acquire compulsorily any interest of the council in any lands or property of the council but the Board may, in accordance with the provisions of this Act, acquire compulsorily such easements and rights in those lands as they may reasonably require for the purpose of constructing, maintaining, renewing and using the works.

(3) (a) Before commencing any river work the Board shall submit to the council plans, sections and particulars, and other details of their proposals, with respect to the river work for their approval (which approval shall not be unreasonably withheld).

(b) If the council do not within twenty-eight days of the submission to them of any plans, sections, particulars or other details under this subsection give notice to the Board of their approval or disapproval they shall be deemed to have approved them.

(4) In this section, except as otherwise expressly provided or unless the context otherwise requires—

“the river” means the Duke of Northumberland’s River together with the land and freeboard thereof;

“river work” means any work or part of a work in, on, over or under the river constructed or to be constructed by the Board in connection with Work No. 4.

(5) Any difference arising between the Board and the council under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

39. For the protection of the sewers of the council the following provisions shall, unless otherwise agreed in writing between the Board and the council, apply and have effect:—

For protection
of sewers of
Greater
London
Council.

- (1) The Board shall not commence any specified work until they shall have given to the council twenty-eight days’ previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the council with plans as described in paragraph (7)

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—cont.

of this section (in this section referred to as “the said plans”) and until the council shall have signified their approval of the said plans:

Provided that if, within twenty-eight days after the submission of the said plans, the council have not approved or disapproved them, they shall be deemed to have approved the said plans:

- (2) The Board shall comply with and conform to all reasonable orders, directions and regulations of the council in the execution of any specified work and shall provide new, altered or substituted works in such manner as the council shall reasonably require for the proper protection of, and for preventing injury or impediment to, any sewer by reason of any specified work and shall save harmless the council against all expenses to be occasioned thereby:
- (3) All such new, altered or substituted works shall, where so required by the council, be done by or under the direction, superintendence and control of an officer of the council duly appointed for the purpose at the costs, charges and expenses in all respects of the Board and all costs, charges and expenses to which the council may be put by reason of such works, whether in the execution thereof, or in the preparation or examination of plans or designs, or in such direction, superintendence or control as aforesaid, or otherwise, shall be paid to the council by the Board on demand:
- (4) When any such new, altered or substituted works or any work of defence connected therewith shall be completed by or at the costs, charges and expenses of the Board under the provisions of this section the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the council as any sewer or work now or hereafter may be:
- (5) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested or to be vested in the council in relation to any sewer but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (6) The council may require the Board in constructing any specified work to make any reasonable deviation within the limits of deviation from the line or levels shown upon the said plans for the purpose of avoiding injury or risk of injury to any sewer of the council and the Board shall in constructing such works deviate accordingly:

- (7) The plans to be submitted to the council for the purposes of this section shall be detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, any specified work is proposed to be constructed and shall accurately describe the position of all sewers of the council within the limits of deviation (for which purpose the council shall allow the Board access to plans in their possession in order to enable the Board to obtain reliable information) and shall comprise detailed drawings of every alteration which the Board may propose to make in any sewer:
- (8) The council may require such modifications to be made in the said plans as may be reasonably necessary to secure the Greater London sewerage system against interference or risk of damage and to provide and secure proper and convenient means of access to any sewer:
- (9) The Board shall be liable to make good, or, if the council so decide, to bear any expense incurred by the council from time to time in making good, all injury or damage caused by or resulting from the construction of any specified work to any sewer, drain or work vested in the council and the council shall have power to recover any expense so incurred by them from the Board in any court of competent jurisdiction:
- (10) If the Board in the construction of any specified work or any new, altered or substituted work or any work of defence connected therewith provided in accordance with this section alter, damage or in any way interfere with any sewer of the council the Board shall—
- (a) from time to time pay to the council any additional expense to which the council may be put in the maintenance, management or renewal of any new, altered or substituted sewer which may be necessary in consequence of the said construction; and
 - (b) give to the council full, free and uninterrupted access at all times to any such new, altered or substituted sewer and every reasonable facility for the inspection, maintenance, alteration and repair thereof:
- (11) It shall be lawful for an officer of the council duly appointed for the purpose at any reasonable time to enter upon and inspect any specified work or any other work constructed under the powers of this section:
- (12) The approval by the council of any plans or the superintendence by them of any work under the provisions

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—cont.

of this section shall not exonerate the Board from any liability or affect any claim for damages under this section or otherwise:

(13) In this section—

“any specified work” means any part of the works which will or may be situated over or within 50 feet measured in any other direction of any sewer of the council;

“sewer” includes any manholes, ventilating shafts, pumps or other accessories belonging to a sewer.

As to
metropolitan
roads and
road traffic,
etc.

1963 c. 33.

40. The following provisions shall, unless otherwise agreed in writing between the Board and the council, apply and have effect:—

(1) In this section “road” means a road which is for the time being a metropolitan road within the meaning of the London Government Act, 1963:

(2) The Board shall not without the consent of the council construct any part of the works which will be within 25 feet of the surface of any road, or which will involve interference with any road, except in accordance with plans and sections submitted to and approved by the council, but such approval shall not be unreasonably withheld:

Provided that if within twenty-eight days after such plans and sections have been submitted the council have not approved or disapproved them they shall be deemed to have approved the plans and sections as submitted:

(3) Without prejudice to the generality of paragraph (2) of this section the Board shall construct Works Nos. 5, 9 and 10 in such a way as to enable the council, should they so decide, to widen the parts of Kew Bridge Road, Hanworth Road and Westcombe Hill affected by the said Works Nos. 5, 9 and 10 respectively and, for this purpose, the Board shall consult with the council and in the event of the Board and the council failing to reach agreement the matter shall be settled by arbitration:

(4) The works shall be so constructed that no part thereof under a road shall (except with the consent of the council) be so constructed as to interfere with the provision of proper means of drainage of the surface of the road or be nearer than 2 feet 6 inches to the surface of the road:

(5) Before commencing to construct any part of the works or any works or conveniences connected therewith which will involve interference with a road or the traffic in any

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—cont.

highway the Board shall consult the council as to the time when such part shall be commenced, and as to the extent of the surface of the road which it may be reasonably necessary for the Board to occupy or the nature of the interference which may be caused to the said traffic in the construction of such part, and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the road shall not be occupied by the Board and the said interference with traffic shall not be caused except at the time, to the extent, and in accordance with conditions agreed between the Board and the council, due regard being had in agreeing any conditions to the traffic on the Board's railway:

- (6) At least fourteen days before commencing to make any hole from the surface of any part of any road the Board shall serve notice in writing on the council of their intention to commence the same and such notice shall describe the place at which any such hole is intended to be made and if within fourteen days after the receipt of such notice any objection is made by the council the matter shall (unless otherwise agreed) be settled by arbitration before the making of the hole is commenced, but if no such objection is made the making of the hole may be proceeded with:
- (7) Except with the consent of the council the Board shall not open, or make any permanent openings or any ventilators, air shafts or other similar openings in, or erect or construct any erection or structure above, the surface of the carriageway or footway of any road, and in constructing, maintaining and operating the said openings, ventilators, air shafts or other similar openings the Board shall take all steps which are reasonably practicable to avoid causing a nuisance:
- (8) The Board shall secure that so much of the works as is constructed under or so as to affect any road shall be designed, constructed and maintained so as to carry the appropriate loading for that road recommended at the time of construction of such works by the Minister for highway bridges and the Board shall indemnify the council against and make good to the council all expenses which the council may reasonably incur or be put to in the maintenance or repair of any road or any tunnels, sewers, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:

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—cont.

- (9) It shall be lawful for the officer of the council duly appointed for the purpose at all reasonable times to enter upon and inspect any part of the works which is in or under any road, or which may affect any road or any property or work of the council, during the execution thereof and the Board shall give to such officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of such works is attended with danger to any road or to any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to or under the jurisdiction or control of the council on or under any road the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:
- (10) The Board shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to or under the jurisdiction or control of the council on or under any road or repairable by them or the access thereto without the consent of the council and any alteration, diversion, replacement or reconstruction of any such sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work as aforesaid which may be necessary shall be made by the council or the Board as the council shall think fit and any costs, charges and expenses reasonably incurred by the council in so doing shall be repaid to the council by the Board:
- (11) The Board shall not remove any soil or material from any road except such as must be excavated in the carrying out of the works:
- (12) The Board shall not, except with the consent of the council, deposit any soil, subsoil or materials or stand any vehicle or plant on any road so as to obstruct the use of such road by any person or except with the like consent deposit any soil, subsoil or materials on any such road except within a hoarding:
- (13) All reasonable costs, charges and expenses incurred by the council in removing any soil, subsoil or materials deposited on any road in contravention of this section shall be a debt due to the council and shall on demand be paid by the Board to the council:

- (14) Where any part of any road shall have been temporarily broken up or disturbed by the Board the Board shall make good the subsoil, foundations and surface of such part of the road to the reasonable satisfaction of the council:

Provided that the reinstatement of such part of the road shall in the first instance be of a temporary nature only and the permanent reinstatement thereof shall be carried out by the council as soon as reasonably practicable after the completion of the temporary reinstatement and the reasonable costs, charges and expenses incurred by the council in so doing shall be repaid by the Board to the council:

- (15) It shall not be lawful for the Board to place any hoardings on any part of any road except for such period as may be necessary and then only in such manner as shall be reasonably necessary and the provisions of the Highways Act, 1959, relating to hoardings shall apply to any hoarding erected on any part of any road and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section: 1959 c. 25.
- (16) The Board shall make compensation to the council for any subsidence of or damage to any road or any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to or under the jurisdiction or control of the council on or under any road or repairable by them which may be caused by or in consequence of any act or default of the Board, their contractors, servants or agents and whether such damage or subsidence shall happen during the construction of the works or at any time thereafter:
- (17) Within three months after the completion of any of the works, or such longer period as the council may agree, the Board shall remove or to the reasonable satisfaction of the council demolish or otherwise dispose of all temporary buildings and structures erected at, above or immediately below surface level for the purposes of or in connection with the construction of that work and shall remove all surplus materials, plant, machinery and appliances provided or approved in connection therewith and shall, so far as is reasonably practicable, to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and

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—cont.

structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of or in connection with that work:

- (18) As soon as reasonably practicable after the completion of any part of the works the Board shall furnish the council with a plan and section showing the position and level of such part of the works as constructed:
- (19) The council may require that the works or works and conveniences connected therewith so far as they involve any serious interference with the movement of traffic in any highway shall be carried on so far as reasonably practicable continuously day and night, due regard being had to the traffic on the Board's railway, and the Board shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference:
- (20) The Board shall not without the consent of the council, which shall not be unreasonably withheld, make any communication between the works and the interior of any building, other than a building wholly used by the Board for transport purposes:
- (21) Any difference arising between the Board and the council under this section shall be settled by arbitration.

As to Duke
of
Northumber-
land's River.

41. The Board shall not in the construction or maintenance of Work No. 4 do or permit to be done anything which may impede or interfere with the flow of water in the Duke of Northumberland's River provided nevertheless that the foregoing provision shall not preclude the Board from diverting water flowing in the said river by means of another channel during the construction of Work No. 4 for the purpose of maintaining the said flow but no such diversion shall be allowed to continue longer than is necessary for that purpose and the Board shall as soon as possible restore the said river to its former state.

For protection
of Hounslow
Corporation.

42. For the protection of the mayor, aldermen and burgesses of the London borough of Hounslow (in this section referred to as "the corporation") the following provisions shall, unless otherwise agreed in writing between the Board and the corporation, apply and have effect:—

(1) (a) In this section—

"highway" means a highway vested in or repairable or maintained by the corporation;

"sewer" means a sewer vested in or under the jurisdiction or control of the corporation;

- (b) The works to which this section applies are so much of Works Nos. 4, 5, 6, 7, 8 and 9 and the works and conveniences connected therewith authorised by this Act as may affect a highway, watercourse or sewer:
- (2) Wherever in this section provision is made with respect to the consent of the corporation such consent shall be in writing and may be given under the hand of the town clerk subject to such reasonable terms and conditions as the corporation may require but shall not be unreasonably withheld:
- (3) (a) Before commencing to construct any part of the works to which this section applies the Board shall—
- (i) submit to the corporation for their reasonable approval plans and particulars relating thereto; and
 - (ii) consult the corporation as to the time when such part shall be commenced, and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the highway shall not be occupied by the Board except at the time, to the extent and in accordance with conditions agreed between the Board and the corporation or in default of agreement settled by arbitration;
- (b) The plans and particulars to be submitted to the corporation for the purposes of this section shall be plans, drawings, sections and particulars which shall describe the position and manner in which, and the level at which, the works to which they relate are proposed to be constructed and shall so far as practicable accurately describe the position of all sewers within the limits of deviation of the said works (for which purpose the corporation shall allow the Board access to plans in their possession and to any of their sewers to enable the Board to obtain information with respect thereto) and shall comprise detailed drawings of any alteration which the Board may propose to make in any sewer:
- (4) No part of the works to which this section applies shall be constructed otherwise than in accordance with such plans and particulars as may be approved by the corporation under paragraph (3) of this section (or, if such approval be refused, as may be settled by arbitration) and in accordance with such reasonable conditions as may be imposed by the corporation:

Provided that if within twenty-eight days after the submission to them of plans and particulars under

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—cont.

paragraph (3) of this section the corporation do not signify to the Board their approval thereof, with or without conditions, or their disapproval thereof they shall be deemed to have approved them unconditionally:

- (5) The corporation may require such modifications to be made in the said plans and particulars as may be reasonably necessary to secure their drainage system against interference or risk of damage and to provide and secure proper and convenient means of access to the sewers:
- (6) In the execution of the works to which this section applies the Board shall comply with and conform to all orders, directions and regulations which the corporation may reasonably make and shall provide new, altered or substituted works in such manner as the corporation shall reasonably require for the proper protection of, and for preventing injury to, obstruction of, or obstruction of the access to, any sewer and shall indemnify the corporation against all expenses to be occasioned thereby:
- (7) All such new, altered or substituted works shall where so required by the corporation be done by or under the direction, superintendence and control of the engineer, or other officer of the corporation, at the cost in all respects of the Board and all costs, charges and expenses to which the corporation may be put by reason of such works, whether in the execution of works, the preparation or examination of plans or designs, superintendence or otherwise shall be paid to the corporation by the Board:
- (8) It shall be lawful for the engineer or surveyor or other officer of the corporation duly appointed for the purpose at all reasonable times to enter upon and inspect any part of the works to which this section applies, or any such new, altered or substituted works, in, under or affecting any highway or which may affect any property of the corporation during the execution thereof, and the Board shall give to such engineer or surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of such works is attended with danger to any highway or to any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign and apparatus connected therewith or work belonging to or under the jurisdiction or control of the corporation the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:

- (9) When any such new, altered or substituted works or any works for the protection of any sewer connected therewith shall be completed under the provisions of this section the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the corporation as their existing sewers:
- (10) Works Nos. 4, 5, 6, 7, 8 and 9, so far as they involve any serious interference with the movement of traffic in any highway, shall after the commencement thereof be carried on as expeditiously as reasonably practicable and the Board shall take all such steps as may be reasonably necessary to reduce as far as possible the period of such interference:
- (11) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested, or to be vested, in the corporation in relation to sewers but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (12) The corporation may require the Board in constructing the works to which this section applies to make any reasonable deviations within the limits of deviation of such works from the line or levels proposed by the Board for the purpose of avoiding injury or risk of injury to the sewers of the corporation and the Board shall in constructing such works deviate accordingly:
- (13) At least fourteen days before commencing any vertical borings from the surface of any part of any highway the Board shall serve notice in writing on the corporation of their intention to commence the same, and such notice shall describe the place or places at which such borings are intended to be made, and if within fourteen days after the receipt of such notice any objection is made by the corporation the matter shall (unless otherwise agreed) be settled by arbitration before the boring is commenced, but if no such objection is made the said borings may be proceeded with:
- (14) The Board shall secure that so much of the works to which this section applies as is constructed so as to affect any highway shall be designed, constructed and maintained so as to carry the appropriate normal loading recommended by the Minister for highway bridges at the time of the construction of the railway and the Board shall indemnify the corporation against, and make good to the corporation, all expenses which the corporation

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—cont.

may reasonably incur or be put to in the maintenance or repair of any highway or any tunnels, sewers, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:

- (15) The Board shall, if reasonably so required by the corporation, provide and maintain to the reasonable satisfaction of the corporation, during such time as the Board may occupy any part of a highway for the purpose of the construction of any part of the works to which this section applies temporary bridges and temporary ramps for vehicular traffic or pedestrian traffic, or both, over any part of the works or in such other position as may be necessary to prevent interference with the flow of traffic in any highway:
- (16) The Board shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work of the corporation, or under the control of or repairable by them, or the access thereto, without the consent of the corporation and any alteration, diversion, replacement or reconstruction of any such sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work which may be necessary shall be made by the corporation or the Board, as the corporation shall think fit, and any costs and expenses reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Board:
- (17) The Board shall not remove any soil or material from any highway except such as must be excavated in the carrying out of the works to which this section applies:
- (18) If any extra expense be incurred by the corporation for the repair of any highway by reason of the diversion thereto of traffic from a road of a higher classification in consequence of the making or construction of the works to which this section applies, the Board shall repay the amount of such expenses to the corporation provided that prior notice of the diversion has been given to the Board:
- (19) The Board shall not, except with the consent of the corporation, deposit any soil, subsoil or materials or stand any vehicle or plant on any highway so as to obstruct the use of such highway by any person or, except with the like consent, deposit any soil, subsoil or materials on any such highway except within a hoarding:

- (20) All reasonable costs, charges and expenses incurred by the corporation in removing any soil deposited on any highway in contravention of this section shall be a debt due to the corporation and shall be paid by the Board to the corporation:
- (21) Where any part of any highway shall have been temporarily broken up or disturbed by the Board the Board shall make good the subsoil, foundations and surface of such part of the highway to the reasonable satisfaction of the corporation:

Provided that the reinstatement of such part of the highway shall in the first instance be of a temporary nature only and the permanent reinstatement thereof shall be carried out by the corporation and the reasonable cost incurred by the corporation in so doing shall be repaid by the Board to the corporation:

- (22) It shall not be lawful for the Board to place any hoardings on any part of the highway except for such period as may be necessary and then only in such manner as shall be reasonably necessary and the provisions of the Highways Act, 1959, relating to hoardings shall apply 1959 c. 25. to any hoarding erected on any part of any highway and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:
- (23) The Board shall be responsible for and make good to the corporation all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to, or reasonably incurred by, the corporation (a) in respect of damage to property of the corporation by reason of the construction of Works Nos. 4, 5, 6, 7, 8 and 9, or the failure thereof, or (b) by reason of any act or omission of the Board or of any persons in their employ or of their contractors, agents or others whilst engaged upon the construction of Works Nos. 4, 5, 6, 7, 8 and 9, and the Board shall effectively indemnify and hold harmless the corporation from and against all claims and demands arising out of, or in connection with, the construction of Works Nos. 4, 5, 6, 7, 8 and 9, or any such act or omission as aforesaid, and the fact that any work or thing may have been done by the corporation on behalf of the Board, or in accordance with plans and particulars approved by the corporation, or in accordance with any requirement of, or condition, order, direction or regulation made by, the corporation

PART V
—cont.

or under the superintendence of the engineer or other officer of the corporation, shall not (if it was done without negligence on the part of the corporation or of any person in their employ or of their contractors or agents) excuse the Board from any liability under this section:

Provided that the corporation shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (24) Within three months after the completion of so much of Work No. 4 as is constructed in the London borough of Hounslow and of any of the Works Nos. 5, 6, 7 and 8 to which this section applies or such longer period as the corporation may agree the Board shall remove or to the reasonable satisfaction of the corporation demolish or otherwise dispose of all temporary buildings and structures erected for the purposes of, or in connection with the construction of that work and shall remove all surplus materials, plant, machinery and appliances provided or approved in connection therewith and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of or in connection with that work:
- (25) As soon as reasonably practicable after the completion of so much of Work No. 4 as is constructed in the London borough of Hounslow and of any part of the Works Nos. 5, 6, 7 and 8, the Board shall furnish the corporation with a plan and section showing the position and level of such part of the works as constructed:
- (26) The Board shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of the works in the London borough of Hounslow and subject to the rights of the Crown and except so far as the same may be proved to be the property of any other person any such objects shall be deposited with the corporation, as the property of the corporation:
- (27) Any difference arising between the Board and the corporation under this section shall be settled by arbitration.

43. For the protection of the British Airports Authority (in this section referred to as "the authority") the following provisions shall, unless otherwise agreed in writing between the Board and the authority, apply and have effect:—

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—cont.

For protection
of British
Airports
Authority.

(1) In this section—

"the airport" means the airport known as Heathrow;

"airport property" means the land, buildings, apparatus and any other property of whatever nature owned by the authority forming part of or held in connection with the airport;

"apparatus" means any apparatus, appliance, conduit, duct or structure belonging to the authority and used for or in connection with the services provided by them for the operation of the airport and includes any structure used for the lodging therein of apparatus but does not include any apparatus to which section 36 (For protection of air navigation services) of this Act applies;

"construction" includes reconstruction and for the purposes of paragraphs (11), (12), (13), (14), (15) and (16) of this section includes maintenance and repair of the works;

"the central station works" means so much of the works as is coloured blue on the signed plan or, if that part of the works is to be constructed in some other line or situation or is otherwise proposed to be altered, that part as proposed to be constructed in accordance with the plans thereof approved, deemed to be approved or settled by arbitration under paragraph (7) of this section;

"the diverted sewer" means so much of the southern outfall sewer as is to be diverted under subparagraph (a) of paragraph (6) of this section and includes that part of the sewer as so diverted;

"plans" includes sections, drawings, specifications and particulars (including particulars as to the method of constructing any work to which the plans relate);

"the signed plan" means the plan of the works signed in duplicate by Alfred Henry Cantrell on behalf of the Board and by Victor Percy Harries on behalf of the authority one copy of which has been deposited with the Board and the other with the authority;

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“ the southern outfall sewer ” means the three pipes comprising the sewer and includes any part of the sewer and any one or more of the pipes;

“ the works ” means so much of Work No. 4 and any work or convenience connected therewith as may be situated upon, across, under or over or may in any way affect any airport property and includes the construction of such works:

- (2) The Board shall not under the powers of this Act acquire compulsorily any airport property (except such land as may be reasonably required for the purposes of an electricity substation and one or more ventilating shafts in such positions and to such extent as may be reasonably necessary for the construction of the works) but they may in accordance with the provisions of section 17 (Power to acquire easements only in certain cases) of this Act acquire such easements and rights as they may reasonably require for the purposes of the works or for obtaining access thereto in any such property delineated on the deposited plans but (except in the case of an easement or right required for obtaining access on the surface to any of the works) such easements or rights shall be restricted to the subsoil and under-surface of the land in respect of which they are granted:

1965 c. 56.

- (3) Notwithstanding anything in the Compulsory Purchase Act, 1965, the authority may, after service of notice to treat for any land which the Board are authorised by this section to acquire compulsorily, from time to time make separate claims for the value of any such land and for the injurious affection of any land of the authority not so taken:

Provided that no claim as aforesaid shall be made after the expiration of a period of two years from the date of the opening for public traffic of Work No. 4:

- (4) Notwithstanding anything shown on the deposited plans or sections the Board in constructing the works shall not—

(a) in relation to so much of the works as lies between the points marked “ A ” and “ AA ” and “ B ” and “ BB ” on the signed plan deviate laterally beyond the limits of deviation shown on that plan;

(b) in relation to so much of the works as is to be constructed on the airport deviate upwards from the levels shown on the deposited sections to a greater extent than five feet:

(5) The works shall be so constructed as to have such load-bearing capacity as may be specified by the authority and different load-bearing capacities may be specified for different parts of the works:

(6) (a) If it be agreed between the Board and the authority or in default of agreement determined by arbitration that as a result of the construction of the works it is reasonably necessary to divert the southern outfall sewer, and if it be agreed or in default of agreement determined by arbitration that the diverted sewer is to be constructed in land not belonging to the authority, the Board shall afford to the authority (free of charge) the necessary facilities and rights for the construction of the diverted sewer in land of the Board and thereafter for the maintenance, repair, renewal and inspection of the diverted sewer:

Provided that if the diverted sewer is to be constructed elsewhere than in lands of the authority, and the Board are unable to afford such facilities and rights as aforesaid in the lands in which the diverted sewer is to be constructed, the authority shall, on receipt of a written notice to that effect from the Board, forthwith use their best endeavours to obtain at the cost of the Board the necessary facilities and rights in such last-mentioned lands;

(b) The diverted sewer shall be constructed in such manner and in such line or situation as may be agreed between the Board and the authority or in default of agreement determined by arbitration and the construction of so much of the works as renders it necessary to divert the southern outfall sewer shall not be commenced until the construction of the diverted sewer is completed to the reasonable satisfaction of the authority and the diverted sewer is in operation;

(c) The diverted sewer shall, when completed, vest in the authority but during construction and for a period of twelve months thereafter the Board shall be responsible for the maintenance and repair thereof;

(d) For the purposes of paragraphs (7), (8), (10), (11), (12), (13), (14), (15) and (16) of this section, but subject to the provisions of paragraph (9) thereof, the diverted sewer shall be deemed to form part of the works and subject as aforesaid those paragraphs shall accordingly apply to the diverted sewer as they apply to the works:

(7) The Board shall, before commencing the works, furnish to the authority for their reasonable approval proper and

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sufficient plans thereof and a statement of the time or times at which and the order in which the works are to be constructed and shall not commence the works until the plans thereof, the time or times at which and the order in which they are to be constructed have been approved in writing by the authority or settled by arbitration:

Provided that if within twenty-eight days after such plans and statement have been furnished to the authority the authority shall not have intimated their disapproval thereof and the grounds of their disapproval they shall be deemed to have approved the same:

- (8) Upon signifying their approval or disapproval of the plans the authority may specify any protective works, whether temporary or permanent, which in their opinion should be carried out before the commencement or during the construction of the works to ensure the safety or stability of airport property and such protective works as may be reasonably necessary for those purposes shall be constructed with all reasonable dispatch and the Board shall not commence the construction of the works until the authority shall have notified the Board that any protective works required to be constructed before the commencement of the works have been completed:
- (9) (a) Upon signifying approval or disapproval of the plans the authority may give notice to the Board that they desire themselves—
- (A) to construct the central station works except—
 - (i) the running tunnels and any works or railway apparatus comprised therein;
 - (ii) any other works below the structural floor or deck above the railway tracks;
 - (iii) any works for providing access from such other works to the station platforms;
 - (B) to carry out any of the protective works referred to in the last foregoing paragraph;
 - (C) to alter, remove or replace any apparatus affected by the construction of the works;
 - (D) to construct the diverted sewer;
 - (E) to reinstate any runway, road or other pavement;
- and any works or other operations in respect of which notice has been given by the authority under this paragraph shall be carried out by the authority in accordance with plans submitted to and reasonably approved by the Board;

(b) Paragraph (7) of this section shall apply to any plans submitted to the Board under this paragraph as it applies to plans submitted by the Board to the authority:

(10) The Board shall give to the authority twenty-eight days' notice of their intention to commence the construction of any of the works and also, except in emergency (when they shall give such notice as may be reasonably practicable), of their intention to carry out any works for the repair or maintenance of the works in so far as such works of repair or maintenance affect or interfere with airport property:

(11) The works shall, when commenced, be constructed with all reasonable dispatch in accordance with the plans approved, deemed to be approved or settled by arbitration in accordance with paragraph (7) of this section and in such manner as to cause as little damage as may be to airport property and as little interference as may be with the operation of the airport and if any damage to airport property or any such interference shall be caused by the construction of the works the Board shall, notwithstanding any such approval as aforesaid, make good such damage and shall on demand pay to the authority all reasonable costs and expenses to which they may be put by reason of any such damage or interference:

Provided that nothing in this paragraph shall impose any liability on the Board with respect to any damage, costs or expenses which is attributable to the act, neglect or default of the authority or their servants, contractors or agents:

(12) The Board shall at all times afford reasonable facilities to the authority for access to the works during their construction and shall supply them with all such information as they may reasonably require with regard to the works, the method of construction and the time or times at which and the order in which they are to be constructed:

(13) The authority shall be entitled to supervise the construction of the works for the purpose of ensuring the safe operation of the airport:

(14) The authority shall at all times afford reasonable facilities to the Board and their agents for access to any works carried out by the authority under this section during their construction and shall supply the Board with such information as they may reasonably require with regard to such works or the method of construction thereof:

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—*cont.*

(15) The Board shall repay to the authority all costs, charges and expenses reasonably incurred by the authority—

(a) in constructing any works or carrying out any operations on behalf of the Board under paragraph (9) of this section including, in respect of the central station works or any permanent protective works, a capitalised sum representing the cost to the authority of maintaining and renewing such works;

(b) in respect of the employment of any inspectors and other persons whom it shall be reasonably necessary to appoint for inspecting and guarding airport property and for preventing, as far as may be reasonably practicable, interference, obstruction, danger or accident arising from the construction or failure of the works;

(c) in respect of any additional temporary lighting of airport property in the vicinity of the works, being lighting made reasonably necessary during and by reason of the construction or failure of the works;

(d) in respect of the supervision of the works:

(16) The Board shall be responsible for and make good to the authority all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the authority by reason of the failure of the works or of any act or omission of the Board or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the works and the Board shall effectively indemnify and hold harmless the authority from and against all claims and demands arising out of or in connection with the construction of the works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done by the authority on behalf of the Board, or in accordance with plans approved by the authority, or in accordance with any requirement of the authority or under the supervision of the authority shall not (if it was done without negligence on the part of the authority or of any person in their employ or of their contractors or agents whilst engaged upon the construction of the works) excuse the Board from any liability under the provisions of this section:

Provided that the authority shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (17) The Board shall not make any trial holes on any airport property without first obtaining the consent of the authority but such consent shall not be unreasonably withheld and the authority may attach thereto such reasonable terms and conditions as they think fit:
- (18) (a) Subject to the provisions of this paragraph the powers by this Act conferred for making and completing the works shall cease (except as to so much thereof as is then completed) on 31st December, 1972;
- (b) If on 1st January, 1968, or at any time thereafter the authority decide that the construction of the central station works must take place and be completed at the same time, so far as reasonably practicable, as the construction by the authority or the London Transport Board or both of them of other works adjacent thereto and serve a notice on the Board requiring the Board to commence the construction of the central station works within such period (not being less than six months) as may be prescribed in the notice (hereinafter in this paragraph referred to as “the prescribed period”) then—
- (i) if the Board do not commence the construction of the central station works within the prescribed period, the powers by this Act conferred for making and completing the works shall not thereafter, except with the consent of the authority, be exercisable by the Board (except as to so much thereof as is then completed);
- (ii) if the Board do commence the construction of the central station works within the prescribed period and complete them with all reasonable dispatch, the powers by this Act conferred for making the works shall cease (except as to so much thereof as is then completed) on the expiration of a period of fifty-four months commencing with the date on which the prescribed period expires;
- (c) If the authority give notice under paragraph (9) of this section that they wish to construct so much of the central station works as is referred to in that paragraph then as from the date of that notice the foregoing provisions of this paragraph shall cease to apply to that part of the central station works:
- (19) Nothing in this Act shall be construed as excluding or limiting the application of any byelaws under section 9 (Byelaws) of the Airports Authority Act, 1965, for the 1965 c. 16.

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—cont.

time being in force or as authorising the doing of any thing which is regulated or restricted by those byelaws except in accordance with the provisions thereof:

Provided that the byelaws shall not have effect so as to prohibit the construction of any of the works or the doing of any other thing if constructed or done with the permission of the authority and the authority shall be deemed to have given their permission to the construction of any such work or the doing of any other thing if constructed or done in accordance with the provisions of this section:

- (20) Any difference arising between the Board and the authority under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection
of London
Transport
Board.

44. The following provisions for the protection of the London Transport Board (in this section referred to as “the London board”) shall, notwithstanding anything in this Act and unless otherwise agreed in writing between the Board and the London board, apply and have effect:—

1967 c. xxxix.

- (1) The Board shall not enter upon, take or use any lands of the London board or in respect of which the London board have compulsory rights of acquisition by virtue of the provisions of the London Transport Act, 1967, without the previous consent in writing of the London board, which consent shall not be unreasonably withheld, and subject to such terms and conditions as the London board may reasonably impose, provided that in the event of an arbitrator deciding that consent has been unreasonably withheld the same shall be deemed to have been given:
- (2) The Board shall not construct Work No. 4 so far as the same is to be constructed in, over, under or in any way affecting any property of the London board or lands in respect of which the said board have compulsory rights of acquisition under the London Transport Act, 1967, except in accordance with such terms and conditions and such plans, sections and specifications as shall previously be agreed between the Board and the London board:
- (3) Any consent given or terms and conditions imposed by the London board under paragraph (1) of this section or any terms or conditions or plans, sections and specifications to be agreed between the Board and the London board under paragraph (2) of this section shall

take account of any obligation to any other person to which the Board may be subject in respect of such lands or in respect of the construction of Work No. 4:

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- (4) Any difference which shall arise between the Board and the London board under this section shall be settled by arbitration.

45. For the further protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Board and the undertakers, apply and have effect:—

For further protection of certain gas, water and electricity undertakers.

- (1) In this section—

“ apparatus ” means—

(a) in the case of electricity undertakers, electric lines or works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by such undertakers; or

(b) in the case of gas or water undertakers, any mains, pipes or other apparatus belonging to or maintained by such undertakers;

and includes any building, structure or works for the lodging therein of apparatus;

“ the undertakers ” means any person authorised by any enactment to carry on an undertaking for the supply of gas, water or electricity within any area within which the Board are by this Act authorised to acquire lands or execute works:

- (2) The Board in the case of the powers conferred by section 11 (Underpinning of houses near works) of this Act shall so far as is reasonably practicable so exercise those powers as not to obstruct or render less convenient the access to any apparatus and, if by reason or in consequence of the exercise of those powers any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the undertakers or any interruption in the supply of electricity, gas or water, as the case may be, by the undertakers shall be caused, the Board shall bear and pay the cost reasonably incurred by the undertakers in making good such damage or restoring the supply and shall—

(a) make reasonable compensation to the undertakers for any loss sustained by them; and

(b) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the undertakers;

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—cont.

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Board with respect to any damage or interruption to the extent that such damage or interruption may be attributable to the act, neglect or default of the undertakers or their contractors or workmen;

(ii) the undertakers shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (3) Notwithstanding the temporary stopping up or diversion of any road or footpath under the powers of section 12 (Temporary stoppage of roads and footpaths) of this Act, the undertakers shall be at liberty at all times to execute and do all such works and things in, upon or under any such road or footpath as may be reasonably necessary or desirable to enable them to inspect, repair, maintain, renew, remove or use any apparatus which at the time of the stopping up or diversion was in that road or footpath:
- (4) Notwithstanding anything in section 17 (Use of sewers, etc. for removing water) of the Act of 1963 as incorporated by section 13 (Incorporation of provisions of Act of 1963 relating to works) of this Act, no use shall be made by the Board in the construction of the works authorised by this Act of pumping or other like modes of removing water except where reasonably necessary or in the case of emergency or unforeseen accident or for the purpose of removing rainwater or other small amounts of water, and the provisions of section 26 of the Public Utilities Street Works Act, 1950, shall apply to, and in relation to, the laying down, taking up or altering of conduits, pipes or other works under the said section 17 as if executed by the Board as operating undertakers within the meaning of the said section 26 for purposes other than the purposes of a railway undertaking:
- (5) Any difference arising between the Board and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

46. For protection of Shell-Mex and B.P. Limited (hereinafter referred to as "the company") the following provisions shall, unless otherwise agreed in writing between the Board and the company apply and have effect:—

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—cont.

For protection
of Shell-Mex
and B.P.
Limited.

- (1) In this section, unless the subject or context otherwise requires—

“ in ” in a context referring to a pipeline includes under, over, across, along or upon;

“ pipeline ” means any pipeline belonging to or maintained by the company and includes any ancillary works and apparatus;

“ the railway works ” means Work No. 4:

- (2) Notwithstanding anything in this Act or shown on the deposited plans the Board shall not acquire any pipeline under the powers of this Act otherwise than by agreement:

- (3) Notwithstanding anything in this Act no pipeline shall be removed from any land or street in which it is situated, nor shall any right of the company to use, maintain, repair, renew or inspect any pipeline in that land or street be extinguished, until any necessary alternative pipeline has been provided and is in operation to the reasonable satisfaction of the company:

- (4) The Board shall repay to the company the reasonable expenses incurred by the company in or in connection with—

(a) the removal and relaying or replacing of any pipeline and the provision, laying down or placing of any new pipeline rendered necessary by reason or in consequence of the construction of any of the railway works;

(b) the cutting off of any pipeline;

(c) the superintending or watching and inspecting any of the railway works which is near to or is likely to affect any pipeline; and

(d) any other work or thing rendered reasonably necessary in consequence of the operations referred to in this paragraph:

- (5) If by reason or in consequence of any of the railway works or any subsidence resulting therefrom any damage to any pipeline shall be caused, the Board shall—

(a) make reasonable compensation to the company for any loss sustained or additional expense incurred by them; and

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—cont.

(b) indemnify the company against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the company;
by reason or in consequence of any such damage:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Board with respect to any damage which may be attributable to the act, neglect or default of the company or their contractors or workmen;

(ii) the company shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent in writing of the Board:

(6) Any difference which may arise between the Board and the company under this section shall be referred to and determined by arbitration.

PART VI

MISCELLANEOUS

Amendment
of Railway
Shipping
Acts.
1895 c. xxviii.

47.—(1) In this section—

“the Act of 1895” means the Fishguard and Rosslare Railways and Harbours (Steam Vessels) Act, 1895;

“authorised port in Great Britain” means any port or place in Great Britain to or from which the Board are empowered by the Railway Shipping Acts to provide a shipping service from or to any port or place outside Great Britain;

“authorised port outside Great Britain” means any port or place outside Great Britain to or from which the Board are empowered by the Railway Shipping Acts to provide a shipping service from or to any port or place in Great Britain;

“the company” means the Fishguard and Rosslare Railways and Harbours Company;

“the Railway Shipping Acts” has the meaning assigned thereto by paragraph 2 of Part II of the Second Schedule to the Transport Act, 1962;

“shipping service” means a service for the carriage by water of passengers and goods or either of them.

(2) As from the passing of this Act—

(a) the powers conferred on the Board by the Railway Shipping Acts shall be deemed for all purposes to include power to provide shipping services to or from any authorised port in Great Britain from or to any authorised port outside Great Britain;

1962 c. 46.

(b) the powers conferred on the company by the Act of 1895 to provide shipping services shall be exercisable by the Board as well as by the company and for the purposes of this section—

(i) the said powers shall be deemed to be powers conferred on the Board by the Railway Shipping Acts; and

(ii) the ports or places to or from which the company are empowered to provide a shipping service shall be deemed to be authorised ports in Great Britain or authorised ports outside Great Britain, as the case may be.

(3) References in any enactment relating to the company to “vessels”, “steam vessels” or “steamboats” shall be construed in the same manner as the like references in the Railway Shipping Acts are required to be construed by section 31 (As to interpretation of Railway Shipping Acts) of the British Railways Act, 1966.

1966 c. xvii.

(4) Any reference in the Railway Shipping Acts to a named port or place shall be construed, for the purposes of this section, as including a reference to any port or place situated within the limits within which the powers of the harbour authority in respect of such first-mentioned port or place are for the time being exercisable.

48.—(1) In this section—

Hovercraft.

“the company” means British Rail Hovercraft Limited;

“hovercraft service” means a service for the carriage of goods and passengers or either of them by means of hover vehicles as defined in section 21 (Interpretation of Part IV) of this Act.

(2) Paragraph (a) of subsection (1) of section 25 of the Transport Act, 1962, shall not apply to the activities referred to in this section if engaged in by the company while the company is a subsidiary of the Board, and the company, while it is a subsidiary of the Board, may with the consent of the Minister engage in all or any of those activities.

(3) The activities referred to in this section are the provision of hovercraft services and of such other services and facilities in connection therewith as may appear to the company to be expedient.

(4) A consent of the Minister for the purposes of this section may be given generally or with respect to any particular activity or activities and may be given for such period and subject to such conditions as the Minister may think fit.

PART VI
—cont.

As to piers
of former
bridge over
river Ribble.

49.—(1) In this section—

“ the gas board ” means the North Western Gas Board;

“ the piers ” means the piers of the former bridge of the Board carrying the West Lancashire railway over the river Ribble situate partly in the county borough of Preston and partly in the parish of Penwortham in the rural district of Preston in the county of Lancaster.

(2) The Board and the gas board may enter into and carry into effect agreements with respect to the maintenance of the piers or for the transferring to and vesting in the gas board of the piers on such terms as may be agreed between the Board and the gas board and any such agreement may provide for the transfer to the gas board of all or any of the powers and obligations of the Board in respect of the piers transferred and vested as aforesaid, and on and from the date of such transfer as aforesaid the gas board may hold and use the piers so transferred for the purposes of their undertaking.

As to
Port Talbot
railway.

50.—(1) In this section—

“ the coal board ” means the National Coal Board;

“ the railway ” means so much of the railway authorised by the Port Talbot Railway and Docks Acts, 1894 and 1899, in the urban district of Maesteg in the county of Glamorgan as extends from a point 132 yards north of the bridge carrying Neath Road (B.4282) over the said railway to a point 348 yards south-east of the bridge carrying the said railway over Cwmdy Road.

(2) The Board and the coal board may enter into and carry into effect agreements for the transferring to and vesting in the coal board of the railway or any part thereof on such terms as may be agreed between the Board and the coal board and any such agreement may provide for the transfer to the coal board of all or any of the powers and obligations of the Board in respect of the railway, or any part thereof, transferred and vested as aforesaid, and on and from the date of such transfer as aforesaid the coal board may hold and use the said railway or any part thereof so transferred for the purposes of their undertaking.

As to
Victoria
Bridge,
Windsor.

1847 c. lviii.

51. So much of section 31 (Confirming Agreement between the Crown and the Company) of The Windsor, Staines and South-Western Railway Act (No. 1), 1847, and of section 3 (Commissioners empowered to construct Bridges and Roads) of the Act 11 & 12 Vict. cap. 53 as imposes any obligation upon the Windsor, Staines & South-Western Railway Company to uphold and keep in repair the Victoria Bridge at Windsor shall cease to have effect.

52.—(1) The period now limited by the British Transport Commission Act, 1961, for the completion of the following works is hereby extended until 31st December, 1973:—

(a) the railway authorised by section 6 (Power to make railway and widenings) of the Southern Railway Act, 1930; and

(b) railway (No. 1) authorised by section 5 (Power to make railways) of the Southern Railway Act, 1935.

PART VI
—cont.

Extensions of
time.

1961 c. xxxvi.
1930 c.
clxviii.

1935 c. xlix.

(2) The powers for the completion of the said works shall cease on the said date except in so far as any such powers shall by then have been exercised.

53. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land, shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

Saving for
town and
country
planning.

1962 c. 38.

54. Where under this Act, any difference (other than a difference to which the provisions of the Compulsory Purchase Act, 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Arbitration.
1965 c. 56.

55. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

Costs of Act.

SCHEDULES

SCHEDULE 1

Section 10.

THE LEVEL CROSSINGS REFERRED TO IN SECTION 10 (AS TO CERTAIN LEVEL CROSSINGS) OF THIS ACT

PART I

In the county of Huntingdon and Peterborough—

In the parish of Offord Cluny in the rural district of St. Neots—

The level crossing known as Cawcutts crossing whereby Asplin's Lane is crossed by the railway between St. Neots and Huntingdon stations.

PART II

In the county of Derby—

In the parish of Foston and Scropton in the rural district of Repton—

The level crossing known as Mill Lane (or Box Lane) crossing whereby Mill Lane is crossed by the railway between Sudbury and Tutbury stations.

In the county of Gloucester—

In the parish of Ashchurch in the rural district of Cheltenham—

The level crossing known as Homedowns crossing whereby the road from Natton to Homedowns Farm is crossed by the railway between Ashchurch and Cheltenham stations.

In the county of Merioneth—

In the parish of Talsarnau in the rural district of Deudraeth—

The level crossing known as Talsarnau station crossing whereby the unnamed road leading from Talsarnau to the sea is crossed by the railway at Talsarnau station.

In the county of Salop—

In the parish of Pimhill in the rural district of Atcham—

The level crossing known as Wollascott crossing whereby the unnamed road from Dunnsheath to Little Wollascott is crossed by the railway between Leaton and Shrewsbury stations.

In the county of Stafford—

In the parish of Draycott in the Moors in the rural district of Cheadle—

The level crossing known as Newton crossing whereby the unnamed road from Newton to the river Blithe is crossed by the railway between Cresswell and Leigh stations.

In the parish of Stowe in the rural district of Stafford—

The level crossing known as Pasturefields crossing whereby Pasturefields Lane is crossed by the railway between Stone and Colwich stations.

SCH. 1
—cont.

In the parish of Alrewas in the rural district of Lichfield—

The level crossing known as Ridget Lane crossing whereby Ridget Lane is crossed by the railway between Lichfield and Burton-on-Trent stations.

SCHEDULE 2

LANDS REFERRED TO IN SUBSECTION (2) OF SECTION 14 (POWER TO ACQUIRE Section 14. LANDS) OF THIS ACT

Area (1)	No. on deposited plans (2)	Purpose for which the lands may be acquired or used (3)
In Greater London— London borough of Hounslow	21, 22, 55 to 58, 61 to 70	To carry out alterations and improvements of the railway between Uxbridge and Chiswick.
London borough of Richmond upon Thames	7 to 12	To carry out alterations and improvements of the railway between Twickenham and Hounslow.
County of Lancaster— Urban district of Ashton-in-Makerfield	1, 2	To provide a railway depot with a means of access to Bolton Road.

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SIR PERCY FAULKNER, K.B.E., C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

British Railways Act 1967

CHAPTER xxx

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4. Application of Part I of Compulsory Purchase Act, 1965.

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WORKS

5. Power to make works.
6. As to dimension of bridge, etc.
7. As to level crossings at Colsterworth.

Section

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9. Further works and powers.
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12. Temporary stoppage of roads and footpaths.
13. Incorporation of provisions of Act of 1963 relating to works.

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LANDS

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PART VI

MISCELLANEOUS

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- 49. As to piers of former bridge over river Ribble.
- 50. As to Port Talbot railway.
- 51. As to Victoria Bridge, Windsor.
- 52. Extensions of time.
- 53. Saving for town and country planning.
- 54. Arbitration.
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SCHEDULES:

Schedule 1—The level crossings referred to in section 10 (As to certain level crossings) of this Act.

Schedule 2—Lands referred to in subsection (2) of section 14 (Power to acquire lands) of this Act.